

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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NELLY LOPEZ, as Administrator of the Estate of
ANGEL LUIS LOPEZ, Deceased,

Plaintiff,

-against-

POLICE OFFICER NIKETAS P. JANIOS (SHIELD NO.
28011), POLICE OFFICER MAYRA A. CARDONA
QUINTERO (SHIELD NO. 27937), POLICE
OFFICER(S)/DETECTIVE(S) JOHN/JANE DOE and
THE CITY OF NEW YORK,

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff' Attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
November 14, 2023

HALPERIN, HALPERIN & WEISKOPF, PLLC
Attorneys for Plaintiff
NELLY LOPEZ, as Administrator of the Estate of
ANGEL LUIS LOPEZ
Office & P.O. Address
18 East 48th Street
New York, New York 10017
(212) 935-2600

Index No.:

Date Filed:

*Plaintiff designates Queens County
as the place of trial. The basis of
venue is: Location of Incident*

SUMMONS

*Plaintiff resides at 1317 West
Farms Road, Apt. 2A, Bronx, New
York 10459*

DEFENDANTS' ADDRESS:

POLICE OFFICER NIKETAS P. JANIOS (SHIELD NO. 28011)
City of New York Law Department
Office of Corporation Counsel
100 Church Street
New York, New York 10007

POLICE OFFICER MAYRA A. CARDONA QUINTERO (SHIELD NO. 27937)
City of New York Law Department
Office of Corporation Counsel
100 Church Street
New York, New York 10007

THE CITY OF NEW YORK
City of New York Law Department
Office of Corporation Counsel
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

NELLY LOPEZ, as Administrator of the Estate of
ANGEL LUIS LOPEZ, Deceased,

Index No.:

VERIFIED COMPLAINT

Plaintiff,

-against-

POLICE OFFICER NIKETAS P. JANIOS (SHIELD NO.
28011), POLICE OFFICER MAYRA A. CARDONA
QUINTERO (SHIELD NO. 27937), POLICE
OFFICER(S)/DETECTIVE(S) JOHN/JANE DOE and
THE CITY OF NEW YORK,

Defendants.

-----X

S I R S:

Plaintiff NELLY LOPEZ, as Administrator of the Estate of ANGEL LUIS
LOPEZ, by her attorney HALPERIN, HALPERIN & WEISKOPF, PLLC, complaining of the
defendants herein, alleges as follows:

PARTIES & JURISDICTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the City of New York, County of Bronx and State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK (hereinafter "NYC") was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and that at all times relevant defendants POLICE OFFICER NIKETAS P. JANIOS (SHIELD NO. 28011) (hereinafter "JANIOS"), POLICE OFFICER MAYRA A. CARDONA QUINTERO (SHIELD NO. 27937) (hereinafter "QUINTERO"), JOHN/JANE DOE, and each

of them, sued herein in their individual capacities, were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

3. Upon information and belief, at all times hereinafter mentioned, defendant JANIOS was employed by the defendant NYC as a member of its police department.

4. Upon information and belief, at all times hereinafter mentioned, defendant QUINTERO was employed by the defendant NYC as a member of its police department.

5. Upon information and belief, at all times hereinafter mentioned, defendant POLICE OFFICER(S)/DETECTIVE(S) JOHN/JANE DOE (hereinafter “JOHN/JANE DOE”) was employed by the defendant NYC as a member of its police department.

6. Upon information and belief, at all times hereinafter mentioned, the defendant, NYC, its agents, servants and employees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”), including all the police officers thereof.

7. The NYPD, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the Commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

8. A Notice of Claim was served on the Comptroller of the City of New York on or about November 15, 2022.

9. 50-H hearings were conducted on April 25, 2023; and as of this date, plaintiff's demand for payment has not yet been addressed by the defendants.

10. More than thirty days have elapsed since the service of the aforementioned Notice of Claim and adjustment or payment thereof has been neglected or refused.

11. This action has been commenced within the time limited by statute for the commencement of such an action, that is, within one year and ninety (90) days after the cause of action accrued.

**AS AND FOR A FIRST, SEPARATE & DISTINCT
CAUSE OF ACTION**

12. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "11", inclusive, of this Complaint, as if same were fully set forth herein at length.

13. At all times hereinafter mentioned, plaintiff's decedent operated, managed and controlled a certain motor vehicle, consisting of an All-Terrain Vehicle (hereinafter "ATV").

14. Upon information and belief, at all times hereinafter mentioned, defendant NYC was and still is the titled owner of a certain unmarked police motor vehicle (hereinafter "The Police Vehicle").

15. Upon information and belief, at all times hereinafter mentioned, defendant NYC was and still is the registered owner of The Police Vehicle.

16. Upon information and belief, at all times hereinafter mentioned, defendant JANIOS operated The Police Vehicle.

17. Upon information and belief, at all times hereinafter mentioned, defendant JANIOS operated The Police Vehicle of the NYPD, with the permission and consent, express or implied, of the owner of said vehicle.

18. Upon information and belief, at all times hereinafter mentioned, defendant QUINTERO operated The Police Vehicle.

19. Upon information and belief, at all times hereinafter mentioned, defendant QUINTERO operated The Police Vehicle of the NYPD, with the permission and consent, express or implied, of the owner of said vehicle.

20. Upon information and belief, at all times hereinafter mentioned, defendant JOHN/JANE DOE operated The Police Vehicle.

21. Upon information and belief, at all times hereinafter mentioned, defendant JOHN/JANE operated The Police Vehicle of the NYPD, with the permission and consent, express or implied, of the owner of said vehicle.

22. Upon information and belief, at all times hereinafter mentioned, defendant NYC managed The Police Vehicle.

23. Upon information and belief, at all times hereinafter mentioned, defendant JANIOS managed The Police Vehicle.

24. Upon information and belief, at all times hereinafter mentioned, defendant QUINTERO managed The Police Vehicle.

25. Upon information and belief, at all times hereinafter mentioned, defendant JOHN/JANE DOE managed The Police Vehicle.

26. Upon information and belief, at all times hereinafter mentioned, defendant NYC maintained The Police Vehicle.

27. Upon information and belief, at all times hereinafter mentioned, defendant JANIOS maintained The Police Vehicle.

28. Upon information and belief, at all times hereinafter mentioned, defendant QUINTERO maintained The Police Vehicle.

29. Upon information and belief, at all times hereinafter mentioned, defendant JOHN/JANE DOE maintained The Police Vehicle.

30. Upon information and belief, at all times hereinafter mentioned, defendant NYC controlled The Police Vehicle.

31. Upon information and belief, at all times hereinafter mentioned, defendant JANIOS controlled The Police Vehicle.

32. Upon information and belief, at all times hereinafter mentioned, defendant QUINTERO controlled The Police Vehicle.

33. Upon information and belief, at all times hereinafter mentioned, defendant JOHN/JANE DOE controlled The Police Vehicle.

34. At all times hereinafter mentioned, Queensboro Bridge is in the vicinity of 29th Street in the City of New York, County of Queens and State of New York, and was and still is a public highway over which the public has the right to travel.

35. At the time of the occurrence herein on August 19, 2022 at approximately 1:36 a.m., plaintiff's decedent was operating the aforesaid ATV on Queensboro Bridge in an easterly direction in the vicinity of 29th Street in the City of New York, County of Queens and State of New York.

36. Upon information and belief, at the time of the occurrence herein and on or about August 19, 2022 at approximately 1:36 a.m., The Police Vehicle of the NYPD owned

by defendant NYC and operated by defendants JANIOS, QUINTERO and/or JOHN/JANE DOE was also being operated in an easterly direction on Queensboro Bridge in the vicinity of 29th Street in the City of New York, County of Queens and State of New York behind the decedent's vehicle.

37. At the time of the occurrence herein on August 19, 2022 at approximately 1:36 a.m., it was dark and the roadway was narrow, not well lit, and confusing to motorists.

38. At the time of the occurrence herein on August 19, 2022 at approximately 1:36 a.m., without a reason to believe that plaintiff's decedent had committed an offense, much less a serious offense, defendants JANIOS, QUINTERO, JOHN/JANE DOE and each of them, began pursuing and chasing the decedent's ATV, utilizing an unmarked vehicle and continuing their pursuit and chase with additional police vehicles at a high rate of speed.

39. As a result of the pursuit, the decedent's ATV struck a tractor trailer, causing his death.

40. The aforesaid occurrence and the resultant injuries sustained by the plaintiff were caused solely by and through the negligence, carelessness, recklessness and wanton disregard on the part of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them, as follows:

(a) In the ownership, management, operation, maintenance and control of The Police Vehicle;

(b) In operating The Police Vehicle in a careless and imprudent manner under the conditions then and there existing;

(c) In operating The Police Vehicle at an excessive and dangerous rate of speed or at such rate of speed that care and caution would permit under the circumstances then and there existing;

(d) In failing to equip The Police Vehicle with appropriate safety and emergency equipment in compliance with law;

(e) In failing to equip The Police Vehicle with proper brakes; in failing to make proper application of the brakes; in failing to apply the brakes in time;

(f) In failing to look;

(g) In failing to see;

(h) In failing to stop;

(i) In failing to yield;

(j) In failing to observe the roadway;

(k) In failing to maintain The Police Vehicle under due and proper control;

(l) In failing to sound horn or give any signal, notice or warning;

(m) In causing a collision although defendants had a full opportunity to avoid same;

(n) In failing to obey the traffic signals provided in the vicinity of the aforementioned roadway;

(o) In failing to obey the signs provided in the vicinity of the aforementioned roadway;

(q) In failing to comply with the statutes, laws and ordinances made and provided for vehicular traffic on the highways of the State of New York;

(r) In failing to comply with the statutes, laws and ordinances made and provided for vehicular traffic on the highways of the City of New York;

(s) In failing to comply with the rules and regulations applicable to police or emergency vehicles promulgated by the City of New York, the State of New York and/or NYPD;

(t) In causing a collision although defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them had a full opportunity to avoid same; and

(u) In otherwise being careless, negligent and reckless in the happening of the aforesaid occurrence.

41. Plaintiff's decedent was in no way negligent in the happening of the aforesaid occurrence.

42. By reason of the negligence of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them as aforesaid, plaintiff's decedent was caused to sustain serious, severe and painful personal injuries, was rendered sick, sore, lame, disabled and otherwise infirm, suffering permanent physical injuries, physical pain and mental anguish; was caused to experience severe physical and psychological pain, suffering, impending death, death and in other respects, was damaged.

43. By reason of the foregoing, plaintiff's decedent has sustained a serious personal injury greater than that as defined in Subdivision (d) of Section 5102 of The Insurance Law of The State of New York and has sustained a serious economic loss greater than that as defined in Subdivision (a) of Section 5102 of The Insurance Law of The State of New York.

44. By reason of the foregoing, plaintiff's decedent is entitled to recover for non-economic loss and for all economic losses sustained.

45. The defendant NYC is vicariously liable to plaintiff for the individual defendant's common law torts via the principle of *respondeat superior*.

46. This cause of action falls within one or more of the exceptions set forth in CPLR 1602.

47. By reason of the foregoing, plaintiff's decedent was damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, in an amount to be determined at the trial of this action.

**AS AND FOR A SECOND, SEPARATE & DISTINCT
CAUSE OF ACTION**

48. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "47", inclusive, of this Complaint, as if same were fully set forth herein at length.

49. On August 19, 2022, defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them who engaged in this high-speed pursuit violated the mandates of NY VTL §1104 in that they exceeded the maximum speed limits, thereby endangering life in what was not an emergency situation.

50. Defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them acted with "reckless disregard" as contemplated by the NY VTL §1104, in that said agents, in what is properly characterized as an authorized emergency vehicle pursuant to NY VTL §1104 and police guidelines, intentionally drove in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow and did so with conscious indifference to the outcome.

51. In light of the dark conditions, the nature of the reason to chase plaintiff's decedent, if any, was in no way serious enough to take the reckless actions defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them took in causing a high-speed pursuit.

52. The roads on which the high-speed chase occurred are well traveled with heavy traffic, even in the middle of the night.

53. The actions of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them in driving at such a high speed were intentionally and/or negligently done in an act of an unreasonable character in disregard of the known and obvious risk that was known to the officers which was so great as to make it highly probable that harm would follow and they entered into the high speed chase with conscious indifference to the outcome.

54. Conducting this high-speed chase was undertaken maliciously with defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them aware that the chase they undertook in the conditions they undertook it, would result in egregious harm to plaintiff's decedent.

55. Defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them intended to punish and injure plaintiff's decedent, and such conduct was unjustifiable pursuant to any government interest, as said defendants had to know to a moral certainty that a high speed chase of any vehicle, even an ATV, in the dark, in low lighting areas, and through streets and intersections with traffic, would result in the decedent's injury or death.

56. At minimum, defendants' conduct was grossly negligent and reckless and resulted in the decedent's massive injuries and death.

57. By reason of the negligence of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them as aforesaid, plaintiff's decedent was caused to sustain serious, severe and painful personal injuries, was rendered sick, sore, lame, disabled and otherwise infirm, suffering permanent physical injuries, physical pain and mental anguish; was caused to experience severe physical and psychological pain, suffering, impending death, death and in other respects, was damaged.

58. By reason of the foregoing, plaintiff's decedent was damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, in an amount to be determined at the trial of this action.

**AS AND FOR A THIRD, SEPARATE & DISTINCT
CAUSE OF ACTION**

59. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "58", inclusive, of this Complaint, as if same were fully set forth herein at length.

60. The foregoing carelessness and negligence of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them, caused, precipitated and/or hastened the death of plaintiff's decedent, on or about August 19, 2022.

61. Plaintiff's decedent left surviving his parents as distributees.

62. This cause of action falls within one or more of the exceptions set forth in CPLR 1602.

**AS AND FOR A FOURTH, SEPARATE & DISTINCT
CAUSE OF ACTION**

63. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “62”, inclusive, of this Complaint, as if same were fully set forth herein at length.

64. Defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each them pursued the decedent’s ATV through several blocks, including several intersections and turns, whereupon the ATV skidded and struck another vehicle at the intersection of Queensboro Bridge and 29th Street in the City of New York, County of Queens and State of New York, resulting in the decedent’s death.

65. Defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each them then fled the scene of the incident, leaving plaintiff’s decedent on the street bleeding and suffering.

66. Defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each them were aware of the risk to the decedent’s safety and his need for medical care and failed to act in deliberate indifference to the decedent’s needs.

67. The decedent’s resulting injuries and subsequent wrongful death were caused by and through the negligence, carelessness, recklessness, intentional conduct and wanton disregard of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them.

68. By reason of the negligence of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them as aforesaid, plaintiff’s decedent was caused to sustain serious, severe and painful personal injuries, was rendered sick, sore, lame, disabled and otherwise infirm, suffering permanent physical injuries, physical pain and mental anguish; was

caused to experience severe physical and psychological pain, suffering, impending death, death and in other respects, was damaged.

69. By reason of the foregoing, plaintiff's decedent was damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, in an amount to be determined at the trial of this action.

**AS AND FOR A FIFTH, SEPARATE & DISTINCT
CAUSE OF ACTION**

70. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "69", inclusive, of this Complaint, as if same were fully set forth herein at length.

71. Plaintiff's decedent was denied timely necessary medical care by defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them after appearing at the scene after the decedent's ATV that was caused to crash into another vehicle.

72. Once defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them were unable to procure medical help for plaintiff's decedent, a corresponding obligation arose for said defendants to seek medical care for the severely injured plaintiff's decedent which they neglected to do.

73. Due to the failure of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them to procure for the plaintiff's decedent timely necessary medical care in a situation in which plaintiff's decedent could not procure such assistance for himself, said defendants violated the decedent's chance for survival and caused him pain and suffering.

74. By reason of the negligence of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them as aforesaid, plaintiff's decedent was caused to sustain serious, severe and painful personal injuries, was rendered sick, sore, lame, disabled and otherwise infirm, suffering permanent physical injuries, physical pain and mental anguish; was caused to experience severe physical and psychological pain, suffering, impending death, death and in other respects, was damaged.

75. By reason of the foregoing, plaintiff's decedent was damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, in an amount to be determined at the trial of this action.

**AS AND FOR A SIXTH, SEPARATE & DISTINCT
CAUSE OF ACTION**

76. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "75", inclusive, of this Complaint, as if same were fully set forth herein at length.

77. Defendant NYC selected, hired, trained, retained, assigned and supervised all members of its Police Department, including defendants JANIOS, QUINTERO, JOHN/JANE DOE and each of them.

78. Defendant NYC was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including defendants JANIOS, QUINTERO, JOHN/JANE DOE and each of them.

79. By reason of the negligence of defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them as aforesaid, plaintiff's decedent was caused to sustain serious, severe and painful personal injuries, was rendered sick, sore, lame,

disabled and otherwise infirm, suffering permanent physical injuries, physical pain and mental anguish; was caused to experience severe physical and psychological pain, suffering, impending death, death and in other respects, was damaged.

80. By reason of the foregoing, plaintiff's decedent was damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, in an amount to be determined at the trial of this action.

**AS AND FOR A SEVENTH, SEPARATE & DISTINCT
CAUSE OF ACTION**

81. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "80", inclusive, of this Complaint, as if same were fully set forth herein at length.

82. The decedent's right to be free from unreasonable searches and seizures was violated by the conduct of defendants JANIOS, QUINTERO, JOHN/JANE DOE and each of them.

83. Defendants JANIOS, QUINTERO, JOHN/JANE DOE and each of them are liable pursuant to New York City Administrative Code §§ 8-801 TO 8-807.

84. Defendant NYC is liable as the employer of defendants JANIOS, QUINTERO, JOHN/JANE DOE and each of them under New York City Administrative Code § 8-803(b).

85. Qualified immunity is no defense to this claim.

86. As a result of the above unconstitutional conduct, plaintiff's decedent was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

87. As a result of the above unconstitutional conduct, defendants NYC, JANIOS, QUINTERO, JOHN/JANE DOE and each of them are liable for punitive damages.

**AS AND FOR AN EIGHTH, SEPARATE & DISTINCT
CAUSE OF ACTION**

88. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “87”, inclusive, of this Complaint, as if same were fully set forth herein at length.

89. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

90. The aforementioned customs, policies, usages, practices, procedures and rules of defendant NYC and the NYPD include, but are not limited to, the following unconstitutional practices:

- i. Pursuing and stopping individuals regardless of probable cause in order to inflate the officer’s arrest statistics;
- ii. Pursing and stopping innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;
- iii. Fabricating evidence in order to cover up police misconduct;
- iv. Using excessive force, negligent and reckless behavior and vehicle operation to engage in pursuits;
- v. Violating patrol guides to conduct negligent and reckless pursuits of individuals traveling in vehicles;
- vi. Fabricating evidence in order to cover up excessive use of force;
- vii. Destruction of evidence in order to conceal police misconduct;
- viii. Deactivating body worn cameras to conceal police misconduct;

ix. Deactivating tracking systems including AVL History and DASLITE to conceal vehicle or MOS location; and,

x. fabricating evidence in order to cover up police misconduct.

91. The foregoing customs, policies, usages, practices, procedures and rules of defendant NYC and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff's decedent.

92. The foregoing customs, policies, usages, practices, procedures and rules of defendant NYC and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff's decedent as alleged herein.

93. The foregoing customs, policies, usages, practices, procedures and rules of defendant NYC and the NYPD were the moving force behind the constitutional violations suffered by plaintiff's decedent as alleged herein.

94. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the decedent's constitutional rights.

95. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the decedent's constitutional rights.

96. The acts complained of deprived the decedent of his right:

- i. Not to be deprived of liberty without due process of law;
- ii. To be free from seizure and arrest not based upon probable cause;
- iii. Not to have summary punishment imposed upon him; and
- iv. To receive equal protection under the law.

WHEREFORE, plaintiff demands judgment against defendant in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, in an amount to be determined at the trial of this action, together with interest, counsel fees and the costs and disbursements of this action.

Dated: New York, New York
November 14, 2023

\S Jeffrey Weiskopf
Jeffrey Weiskopf, Esq.
HALPERIN, HALPERIN & WEISKOPF, PLLC
Attorneys for Plaintiff
NELLY LOPEZ, as Administrator of the Estate of
ANGEL LUIS LOPEZ
Office & P.O. Address
18 East 48th Street
New York, New York 10017
(212) 935-2600

VERIFICATION

STATE OF NEW YORK)
 :
COUNTY OF NEW YORK)

JEFFREY WEISKOPF, being an attorney duly admitted to practice before the Courts of the State of New York, swears and affirms the following to be true under the penalties for perjury:

I am a member of the firm of Halperin, Halperin & Weiskopf, PLLC. and the attorney for plaintiff in the within action. I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

This verification is made by me because plaintiff resides in a county other than that in which my firm's office is located. The source of your deponent's knowledge is conversations with plaintiff and the examination of medical and other records relevant to this action.

Dated: New York, New York
November 14, 2023

\S Jeffrey Weiskopf

JEFFREY WEISKOPF